

Reseller agreement with STP / Septeo

Founders1 GmbH · 15 September 2026 · draft not yet sent to the counterparty

We ask for a review of the attached agreement before it goes to the counterparty. The commercial terms are settled and are not in question. What we need is (1) a view on how the arrangement is **characterised** under German law, because that question drives two consequences we care about, and (2) a check of the clauses listed in section 4. The document was drafted by us, not by a lawyer.

1 The deal, in short

Founders1 GmbH operates **BetterCo**, a platform that procures company registry documents and registry data from official registers in 153 jurisdictions and delivers them with provenance. STP Business Information GmbH (Karlsruhe, a company of the Septeo group) sells software and information services to legal, notarial and tax practices, and will offer our service to those clients **in its own name and for its own account**. We never appear towards the end client and have no contract with them.

- › **Non-exclusive.** We remain free to sell directly and through other resellers.
- › **Group scope.** Other Septeo companies may resell by accession (clause 4); STP stays the sole contracting and billing party, so the relationship remains German–German.
- › **Compensation.** Per case, STP pays us the procurement cost *plus 50 % of the net amount* it invoices its client after that cost; STP keeps the other 50 %. Minimum EUR 1.500 per month on our share from the third month. STP sets its own end-client prices.
- › **Term.** 24 months, then 12-month renewals; a jurisdiction falls away if supply ceases.
- › **No contractual penalty** anywhere in the agreement — a deliberate decision.

2 The question that matters most

Is this a resale, or is it an agency / commission arrangement?

We have drafted it as a **resale**. But the compensation is a **profit share, not a purchase price**, and we understand that to be the classic indicator pointing the other way.

Two consequences turn on the answer, which is why we raise it first rather than leaving it to the clause list:

- › **§ 89b HGB by analogy.** If STP were treated as akin to a commercial agent, a compensation claim on termination becomes arguable. We have tried to close the customer-base limb by letting STP report by its own reference rather than naming its clients (clause 8.5), so we never acquire the customer base. Does that help, and what else would?
- › **DORA.** Our end clients include regulated institutions. On a resale reading, STP is the financial entity's ICT third-party service provider and we are STP's subcontractor, so the Art. 30 apparatus lands on STP. On an agency reading we would be supplying the regulated institution directly, and it lands on us. Clauses 9.5 and 9.6 are written on the first assumption.

Drafting already aimed at this: clause 3.1 and 2.1 say „in its own name and for its own account“, and clause 15.5 is an express no-agency / no-Kommission / no-partnership clause. **We would like to know whether that is enough, and if not, what would be** — including whether the compensation mechanic itself should be restructured as a purchase price with a rebate rather than a share.

3 A second structural question

Is this document AGB? It is our draft, intended for one counterparty, and we expect it to be negotiated. If it is nonetheless measured against §§ 305 ff. BGB, the clauses most at risk are the liability cap (13.2), the warranty exclusion for register content (12.2) and the restrictions in clause 5. We would like to know which of them we should expect to lose in a form-contract reading, and what we should document about the negotiation to avoid that reading.

A conduct question, not only a drafting one

The counterparty's best move may be to *not* negotiate these clauses: accept them, and rely on § 307 to strike them later.

On that reading, light resistance to our restrictive clauses is not agreement. We would like your guidance on **how to conduct the negotiation** so that clauses 5, 6.1, 12.2 and 13.2 are demonstrably *ausgehandelt* — what to put in writing, what a concession has to look like to count, and what record to keep.

Clauses to check and what we are asking

4 Clauses we want looked at

CLAUSE	WHAT IT DOES	OUR CONCERN
3.1, 3.4, 15.5	resale right, field of use, no agency	the characterisation question in section 2
3.5 + Annex 5	what the end client may do with a delivered document	rights are limited to what we ourselves hold upstream; is that limiter effective against an end client we have no contract with?
5	restrictions: no redistribution, no dataset resale, no competing product	enforceable as drafted? § 307 risk if read as AGB
6.1	non-circumvention of our supply routes, 24 months post-term	duration and scope acceptable? It has no penalty attached (decision), so it rests on provable damage — is it worth anything in that form?
8.2–8.4	cost + 50 % of net, monthly minimum	the profit-share point in section 2; also whether the minimum survives as drafted
9.1 + Annex 5	terms STP must carry into its own end-client terms, in substance	is a substance obligation (rather than verbatim wording) workable, given we have no privity?
9.5, 9.6	DORA: what STP may not agree on our behalf; the cooperation we will give	sufficient if the service supports a critical or important function?
10 + Annex 3	parties as independent controllers, not processor	we believe this is right: we decide routes, retention and sourcing, and our own suppliers act as our processors. Please confirm, and confirm Annex 3 is the correct instrument rather than an AVV
12.1, 12.4	we warrant provenance metadata; 12.4 says clause 12 is not a Garantie	12.4 was added because „warrants“ could otherwise switch off the 13.2 cap entirely. Does it do its job?
12.2	no warranty for the content of the register itself	the clause we least want to lose; it is the difference between selling procurement and underwriting registers
13.2	cap at our share under 8.2, pass-through excluded	effective? And if the counterparty asks to make clause 13 mutual, we want breaches of 5, 6 and the Annex 5 pass-through carved out of any cap they obtain
14.1, 14.2a	24 months; a jurisdiction falls away if supply ceases	14.2a is new and unreviewed

5 What is deliberately not in the document

- › **Prices.** Procurement costs are not stated in the body of the agreement. They sit in **Annex 2a**, a separate but incorporated document, dated at signature and amendable only under clause 8.6, so it can be replaced without re-executing the agreement and circulated to fewer people. We would value a view on this: under clause 8.2 the procurement cost is an input to the settlement formula, and we want to be sure the construction does not read as one party determining the consideration.
- › **Our upstream supply arrangements.** We have a supply agreement whose terms constrain what we may pass on. That is being handled on a separate track and is *not* part of this instruction; clause 3.5 and Annex 5(b) are drafted so that the agreement does not over-promise whichever way it resolves. Please flag if you think it cannot be left outside this review.
- › **Coverage is thinner than the jurisdiction count suggests**, and we would value a view on how much of this has to be on the face of Annex 2 before signature. Measured on 15.09.2026 from our supplier's own interface: **Spain cannot be searched at all** (it is one of the counterparty's fifteen priority markets); the **United States resolves in 23 states only**, without California, Texas, Nevada or Wyoming, and cannot be ordered at country level; **Canada is three provinces** and Ontario is not among them; **Brazil** is served by the São Paulo commercial register, one of 27. Annex 2.2 today lists all of these as covered jurisdictions without qualification. Our concern is misrepresentation rather than drafting, but the remedy may be contractual.

6 What we are asking for

- Q1 Does this read as a resale or as an agency/commission arrangement, and what would make the resale reading safe? If the compensation mechanic is the problem, say so — we can restructure it before it is sent.
- Q2 Is a § 89b HGB analogy a real risk here, and does clause 8.5 do useful work against it?
- Q3 AGB or individually negotiated — and which clauses do we lose if it is AGB?
- Q4 Are the independent-controller construction and Annex 3 correct, or should this be an AVV?
- Q5 Do 12.4 and 13.2 hold together, and is 12.2 defensible as drafted?
- Q6 Anything in the clause table in section 4 that does not do what we think it does.

We would rather hear that the structure is wrong now than after it is signed. If the answer to Q1 is that it should be built differently, that is a useful answer.

7 Attached

- › Reseller agreement with Annexes 1–5 — *SEPTEO_RESELLER_AGREEMENT_2026-09-14.pdf*, 17 pages
- › Annex 2a — price list (confidential) — *SEPTEO_ANNEX_2A_PRICE_LIST.pdf*, 1 page

Both are drafts. Nothing has been sent to the counterparty, and no version of this has been signed.